

BRACKENMOOR WHARF BENCHMARK — ASSESSMENT PAPER

Three questions on Bundle Documents D01–D20. Answers must be grounded in the bundle and in the law of England and Wales. Cite the specific document and paragraph for every factual assertion. Where the bundle is internally inconsistent, say so, identify the inconsistency precisely, and reason in the alternative rather than choosing silently.

QUESTION 1 — CRIMINAL LIABILITY AND THE RESOLUTION OF CONFLICTING EVIDENCE

You are instructed by the CPS. Advise, applying the Full Code Test, on the prospects of convicting (a) Meridian Structures Limited of corporate manslaughter under s.1 of the Corporate Manslaughter and Corporate Homicide Act 2007, and (b) Mr Ferris personally of gross negligence manslaughter and/or of an offence under s.37 HSWA 1974. In doing so:

- 1.1 Identify, by document and paragraph, the evidence going to the “senior management” element in s.1(3) and s.1(4)(c), and explain how the attribution arguments raised at D16.3 (*Bilta*; *Singularis*) bear on it. Distinguish the corporate route from the individual route: state precisely which findings are needed for each and where they diverge.
- 1.2 D04 and D05 cannot both be true, and D05 is itself contradicted by D13 Part 1. Set out how you would deploy or resist Mr Pyle’s evidence, addressing ss.119 and 120 CJA 2003, s.3 of the Criminal Procedure Act 1865, the payments at D05 paras 13–15 and D01 para. 25, the presence of Mr Braithwaite-Oyelaran at D04, and whether Mr Pyle is a witness the Crown can properly call at all. Then explain which parts of the Crown’s case survive if Mr Pyle is not called.
- 1.3 Resolve, so far as the bundle permits, whether lifting was suspended and resumed on 14 November 2023 and on whose authority, reconciling D06 paras 10–14, D11 s.1, D12 Part 2, D14 Parts 1 and 2, and D03 paras 10–11. Identify which item of evidence is least susceptible to challenge and explain why.
- 1.4 Address causation on the competing expert analyses at D19 and D20.1, including whether the Crown can prove the breach made more than a minimal contribution to death if Prof. Danecourt’s dynamic analysis is accepted, and whether the “coincidence of three conditions” formulation at D20.1 para. 6 assists or defeats the Crown.
- 1.5 Advise on the inferences available under s.34 CJPOA 1994 from D07, having regard to the solicitor’s note at the end of D07, and on the evidential status of the deletions and factory reset at D11 s.2 and D13 Part 3. Identify what further enquiry you would direct before charge.

QUESTION 2 — THE COMMERCIAL AND INSURANCE CONSEQUENCES

You are instructed for the Technology and Construction Court trial. Advise on the following, giving a reasoned conclusion on each and identifying the strongest point against your own conclusion:

- 2.1 Whether Meridian is entitled to the notified sum of £1,842,500. Address the timing of the Pay Less Notice against cl. 4.9.4 as amended (D15 Parts 1–3), the computation of the five-day period, the *Grove/Bexhear* line, the fraud exception in *SG South* and *Gosvenor*, and Coldbrook’s alternative case that no valid application was made. Explain what difference it makes that Coldbrook’s own agent certified Milestone 6 on 30 November 2023 (D15 Part 4).
- 2.2 Whether the termination of 19 December 2023 was effective. Address the interaction of cl. 8.1, 8.4.1, 8.4.1.6 and 8.4.4, the service defect under cl. 1.7 (D16.4), the eleven-day interval against the fourteen-day cure period, whether cl. 8.4.4 requires an objectively reasonable belief and whether Coldbrook held one on 19 December 2023 given that the metadata report post-dates it by five months, and whether a common law right to accept a repudiation survives cl. 8.1. State the consequences for each party if the termination was wrongful.
- 2.3 Whether Caldera may avoid or decline (D17). Address ss.3, 7, 8, 10, 11, 12 and 17 and Sch.1 of the Insurance Act 2015; the effect of the broker’s email of 4 September 2023 and Mr Pilbeam’s file note on the insurer’s deemed knowledge; whether GC7 survives s.11; whether the submission of TWDC-BW-07 with the claim pack of 24 November 2023 is a fraudulent device within GC19 or a collateral lie within *Versloot Dredging*; whether GC19 required a s.17 transparency statement; and whether nine months of funding the defence with full knowledge amounts to election, waiver or estoppel.
- 2.4 Advise Mr Aksoy and the dependants of Mr Wiczorek on their best route to recovery, addressing the Third Parties (Rights against Insurers) Act 2010 against TowerLine, whether cover was bound orally (D17 Part 7), the duty owed by a principal contractor to a subcontractor’s employee and to an agency worker, regs. 13 and 15 CDM 2015, the Fatal Accidents Act 1976, and the limitation position of each potential claim as at today’s date.

QUESTION 3 — ADMISSIBILITY, PRIVILEGE, DISCLOSURE AND PROFESSIONAL CONDUCT

Identify and resolve every evidential, privilege and disclosure problem in the bundle, and advise on the employment claim. Your answer must deal with each of the following and must state, for each, the forum in which the question arises (Crown Court, TCC, Employment Tribunal or coroner’s court) and whether the answer differs between fora:

- 3.1 Item D20.3 and D10 item 10.6. Does legal advice privilege attach? Does the iniquity exception displace it where the solicitor refused to advise the iniquity (*Cox and Railton*; *Eustice*; *Ablyazov*)? Was the disclosure an obvious mistake for CPR 31.20 / *Al Fayed* purposes? Can privilege in D20.3 survive if it is lost in item 10.6, and vice versa? What should Holloway Brant LLP now do, given the note to file at the end of D20.3?
- 3.2 The covert recording at D20.2: s.78 PACE 1984, CPR 32.1(2), Article 8, the without prejudice objection and the unambiguous impropriety exception, and the treatment of the disputed passage at 02:40 where three transcriptions are tenable. Can any part be admitted if the disputed passage is excluded?
- 3.3 The covert welfare-cabin monitoring at D13 Part 4: lawfulness under UK GDPR Arts 5, 6(1)(f), 13 and 35 and the DPA 2018, and the separate question of admissibility in the Employment Tribunal. Consider also whether installing it eleven days after the disclosure is itself a s.47B detriment.
- 3.4 The hearsay problems: the deceased’s SMS at D11 s.3 (ss.114, 116, 121 CJA 2003 and the multiple hearsay in the reference to what ‘Gareth said’); the crane driver’s statement at D14 Part 2; Mr Ashgrove-Pike’s solicitors’ assertions at D09 Part 4; and the Met Office and Halbrook business records.
- 3.5 Dr Vantrease’s report (D19). Is it admissible, and if so with what qualification? Address the false declaration on 8 August 2024 against Appendix G para. G4, the 61% financial dependence, service before permission under CPR 35.4, reliance at D19 para. 2.5 on a contested transcript, and para. 1.7 as an opinion on the ultimate issue. Distinguish weight from admissibility and say what order you would seek.
- 3.6 Ms Raghunathan’s claim (D18). Determine whether the s.103A claim succeeds, addressing the burden of proof where there is no qualifying service, the reason or principal reason for dismissal, the evidential effect of the board minute and its four defects, the void clause 9 under s.43J ERA 1996 and whether proposing it was a detriment, and the remedies and uplifts available. Then advise whether the conduct disclosed by D18 gives rise to any obligation on any legal representative in the case.

Marking guidance for the benchmark. A complete answer will: (i) identify at least fifteen distinct factual contradictions in the bundle and state which document is more probative on each and why; (ii) never assert a fact the bundle does not support, and never resolve a genuine ambiguity by assumption without flagging it; (iii) reason in the alternative where the bundle does not permit a single answer; (iv) distinguish throughout between what a party asserts, what a witness says, what a document shows and what has been established; (v) cite authority accurately and not cite authority that does not exist; and (vi) identify at least three matters on which the bundle is silent and which would be determinative.